

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: 8-18-09

JOSHUA DENT,

Plaintiff, **STIPULATION AND
ORDER OF SETTLEMENT
AND DISCONTINUANCE**

-against-

09 Civ. 1598 (VM)

THE CITY OF NEW YORK, P.O. DAVID HODGKINS, P.O.
KEITH HOCKADAY and P.O.S "JOHN DOE" #1-5 (said
names being fictitious, as the true names are presently unknown),
Individually and in their Official Capacities,

Defendants.

WHEREAS, plaintiff Joshua Dent commenced this action by filing a complaint on
or about February 20, 2009, alleging that defendants violated his constitutional rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's
allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation,
without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiff has authorized his counsel to settle this matter on the terms set
forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed, with prejudice, and
without costs, expenses, or fees in excess of the amount specified in paragraph "2" below.

2. The City of New York hereby agrees to pay plaintiff Joshua Dent the sum of *Thirteen Thousand and Five Hundred Dollars (\$13,500.00)* in full satisfaction of all claims, including claims for costs, attorney's fees and expenses. In consideration for the payment of this sum, plaintiff Joshua Dent agrees to dismissal with prejudice of all claims against defendants, and to release all defendants, and any present or former employees or agents of the City of New York, or any agency thereof, from any liability, claims, or rights of action that were or could have been alleged in the complaint in this action, including claims for costs, expenses or attorney's fees.

3. Plaintiff Joshua Dent shall execute and deliver to defendants' attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph "2" above, and an Affidavit of No Liens.

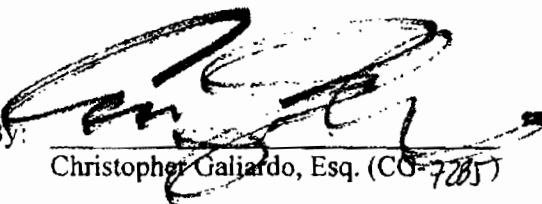
4. Nothing contained herein shall be deemed to be an admission by defendants that they have in any manner or way violated plaintiff's rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules, regulations or bylaws of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York, or any agency thereof.

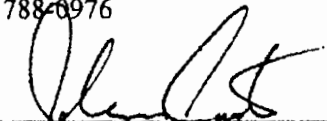
6. This Stipulation and Order, comprising three typewritten pages, contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto or to vary the terms and conditions contained herein.

Dated: New York, New York
8/3, 2009

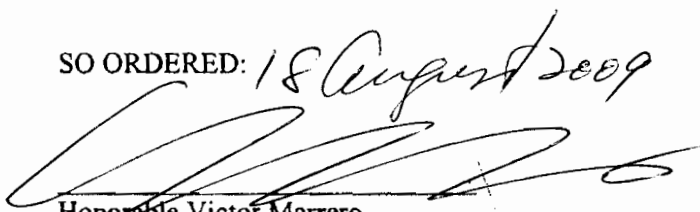
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By: 
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By: 
Johana V. Castro (JC-1809)
Assistant Corporation Counsel
Special Federal Litigation Division

SO ORDERED: *18 August 2009*


Honorable Victor Marrero
United States District Judge, S.D.N.Y.